

IN THE [COURT IN WHICH YOU WERE ACCUSED OR CONVICTED – OR, WHERE THE FELONY CHARGE WAS DISMISSED, THE SUPERIOR COURT OF THE COUNTY OF ARREST; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA,
Plaintiff,

v.

JOHN DOE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION FOR A FELONY CHARGE RESOLVED WITHOUT CONVICTION, PURSUANT TO O.C.G.A. § 35-3-37(j)(1)

STATUTORY AUTHORITY

O.C.G.A. § 35-3-37(j)(1) – Where an individual had a felony charge dismissed or nolle prossed, or was found not guilty of it, but was convicted of a misdemeanour offence that was not a lesser included offence of the felony charge, the individual may petition the court in which he or she was accused or convicted – or, if the charge was dismissed, the superior court in the county where the arrest occurred – to restrict access to criminal history record information for the felony charge, within four years of the arrest. The relief restricts the felony charge only.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court of the State of Georgia in Sample County (synthetic sample venue) that handled the underlying criminal case, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Georgia.

II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Atlanta, GA 30303.
4. Plaintiff is the State of Georgia.

III. FACTS AND CASE HISTORY

5. On or about 02/03/2023, Defendant was charged with Felony charge under a Georgia Code section stated in the participant's own disposition record (synthetic sample charge) by Sample County Sheriff's Office (synthetic).
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. On 06/14/2023, the matter was resolved with the following disposition: Felony charge nolle prossed; Defendant convicted of a separate misdemeanour offence (synthetic sample disposition).
8. The offense grade was: Felony (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for record restriction on the following basis: record

restriction under O.C.G.A. § 35-3-37(j)(1) (Defendant states the felony charge was nolle prossed and that the misdemeanor of conviction was not a lesser included offence of it).

10. Defendant states the felony charge identified above was resolved without a conviction on that charge (synthetic sample answer).

11. Defendant asserts that the misdemeanor offence of conviction was not a lesser included offence of the felony charge. This assertion is Defendant's own; it is not a conclusion supplied by the preparer of this Petition.

12. Defendant states this Petition is filed within four years of the arrest date stated above (synthetic sample answer).

13. In Defendant's own words: the felony charge on Defendant's record has been a barrier to employment and housing (synthetic sample participant narrative).

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the record restriction of the criminal history record information for the felony charge, and for no other charge, in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to restrict access to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Atlanta, GA 30303

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

Notice to the arresting law enforcement agency and the prosecuting attorney. This is broader than the other § 35-3-37(j) routes. Service by certified mail, e-filing or hand delivery, certified in a certificate of service naming both recipients.

I certify that on _____, I served a copy of this Petition upon the arresting law enforcement agency and the prosecuting attorney, both of whom receive notice on this route at the following address:

[ARRESTING AGENCY AND PROSECUTING ATTORNEY SERVICE ADDRESSES – CONFIRM THE AGENCY DESTINATION WITH THAT AGENCY AND THE PROSECUTOR ADDRESS WITH THE CLERK]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JOHN DOE

Date: _____

PROPOSED ORDER

IN THE [COURT IN WHICH YOU WERE ACCUSED OR CONVICTED – OR, WHERE THE FELONY CHARGE WAS DISMISSED, THE SUPERIOR COURT OF THE COUNTY OF ARREST; CONFIRM FROM YOUR OWN COURT RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN COURT RECORD] COUNTY, STATE OF GEORGIA

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DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Georgia Crime Information Center of the Georgia Bureau of Investigation, the clerk of this Court, and the county and municipal law enforcement, jail and detention center records custodians for this matter, Sample County Sheriff's Office (synthetic), and all other criminal justice agencies with records pertaining to this matter are hereby directed to restrict access to all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Exhibit A – Copy of the final disposition obtained by the participant from the clerk
- [PROPOSED] ORDER (for the court's signature)

Prepared by defendant using LegalEase RCAP. This is not an official court form.